

Executive Summary

Uganda is a constitutional republic led since 1986 by President Yoweri Museveni of the National Resistance Movement (NRM) party. In February 2016 voters re-elected Museveni to a fifth five-year term and returned an NRM majority to the unicameral parliament. The elections fell short of international standards and were marred by allegations of disenfranchisement and voter intimidation, harassment of the opposition, closure of social media websites, and lack of transparency and independence in the Electoral Commission. The periods before, during, and after the elections were marked by a closing of political space, intimidation of journalists, and widespread use of torture by the security agencies.

Civilian authorities maintained effective control over the security forces.

On December 20, Parliament passed a bill removing presidential age limits from the constitution, and on December 27, President Museveni signed the bill, thereby paving the way for him to run for another term. During the period before passage of the bill, the government limited freedoms of speech and assembly.

The most significant human rights issues included unlawful killings and torture by security forces; harsh prison conditions; arbitrary detention; restrictions on freedoms of press, expression, assembly, and political participation; official corruption; and criminalization of same-sex consensual sexual conduct, including security force harassment and detention of lesbian, gay, bisexual, transgender, and intersex persons.

The government was reluctant to investigate, prosecute, or punish officials who committed human rights violations, whether in the security services or elsewhere in government, and impunity was a problem.

Section 1.

Respect for the Integrity of the Person, Including Freedom from:

A. ARBITRARY DEPRIVATION OF LIFE AND OTHER UNLAWFUL OR POLITICALLY MOTIVATED KILLINGS

There were several reports the government or its agents committed arbitrary or unlawful killings, including due to torture.

On June 23, media reported that, Uganda Peoples Defense Forces (UPDF) and Uganda Police Force (UPF) personnel allegedly shot and killed Erasmus Irumba, a coordinator at local human rights nongovernmental organization (NGO) The Twerwaneho Listener's Club, and his friend Vide Kanyoro. According to NGO, Irumba had been investigating two high-profile corruption cases involving security officials. According to local media, a police spokesperson claimed the men were suspected arms traders and said that elements of the security forces killed them. The UPF later announced it had arrested Third Mountain Battalion Commander Richard Muhangi, Ntoroko District Police Commander Gerald Atuhairwe, and District Internal Security Officer Elidard Babishanga on charges of murder and robbery and remanded them to Kitojjo Prison, where they awaited trial at year's end.

According to the local NGO Foundation for Human Rights Initiative (FHRI), the UPF tortured to death a suspect arrested for alleged involvement in the March 17

killing of Assistant Inspector General of Police Andrew Felix Kaweesi. FHRI reported that in the course of investigating Kaweesi's killing, police arrested and tortured at least 13 suspects, including tying polythene bags over two suspects' heads while transferring them between detention facilities, asphyxiating one suspect to death.

The Uganda Human Rights Commission (UHRC) had yet to release the findings of its investigation into the security service's November 2016 raid on Rwenzururu King Charles Wesley Mumbere's palace, during which, according to local and international media and human rights organizations, UPDF and UPF personnel killed between 60 and 250 persons, including a number of unarmed civilians. Human Rights Watch's (HRW) March 13 report noted that, as of year's end, 15 children ages three to 14 years who were last seen in the palace compound the day of the raid remained missing. On March 15, UPDF spokesperson Richard Karemire told a local television station that under the law, the military could not investigate the raid while the court case against Mumbere and some of his guards was pending.

On February 6, the Jinja Magistrate's Court released Mumbere on bail and confined his movements to Kampala, Wakiso, and Jinja Districts, hence forbidding him from travelling to his kingdom in Western Uganda. Trials of the king and his guards continued at year's end.

B. DISAPPEARANCE

There were no reports of disappearances by or on behalf of government authorities.

C. TORTURE AND OTHER CRUEL, INHUMAN, OR DEGRADING TREATMENT OR PUNISHMENT

The constitution and law prohibit such practices. The 2012 Anti-Torture Act stipulates that any person convicted of an act of torture may be sentenced to 15 years' imprisonment, a fine of 7.2 million shillings (\$2,000), or both. The penalty for conviction of aggravated torture is life imprisonment. Nevertheless, there were credible reports security forces tortured and physically abused suspects.

From January through May, of the 289 detainees the African Center for Treatment and Rehabilitation of Torture Victims (ACTV) interviewed, 255 said that UPF or UPDF personnel had tortured them. ACTV provided legal advice to 64 torture victims.

Media reported multiple cases of the UPF torturing detainees suspected of involvement in the Kaweesi killing. On May 12, ACTV reported that UPF and UPDF personnel tortured 13 detainees suspected of involvement in his death. Reportedly, the suspect's lawyer said police had tortured his clients by flogging them while they hung upside down, inserting red peppers in their noses and mouths, cutting them with knives, burning them with clothes irons, giving them electric shocks, and submerging them in water, among other methods. On October 12, a court awarded 22 individuals, whom police had arrested for alleged involvement in the Kaweesi killing, with 80 million shillings (\$22,200) each, as compensation for being tortured by UPF and UPDF personnel.

Of the 22 individuals arrested in May, on November 7, the court granted seven of them bail. Immediately after their release, plain-clothed armed men violently apprehended four of the men in front of the courthouse. Several hours later the UPDF took responsibility for the arrests and stated that the men were suspected of belonging to the Allied Defense Forces, a Democratic Republic of the Congo (DRC)-based militia group, unrelated to Kaweesi's death. On November 9, local

media reported that the UPDF and UPF denied holding the four men and accused each other of doing so.

On May 11, local media reported UPF personnel also arrested and allegedly tortured Kamwenge Town Mayor Geoffrey Byamukama for suspected involvement in Kaweesi's death. Local media broadcast images of deep wounds on Byamukama's knees and ankles and reported on May 30 that according to state prosecutors, UPF officers had beaten him with metal bars. On May 11, UPF spokesperson Asan Kasingye denied that UPF officers tortured Byamukama, claiming that he was injured during a struggle with the arresting officers. After public criticism and calls for accountability, however, local media reported on May 20 that the UPF arrested four police officers, Habib Roma, Ben Odeke, Fred Tumuhairwe, and Patrick Muramira, on charges of torturing Byamukama. The court arraigned them on May 26 and released them on bail on May 30. The case continued at year's end. Byamukama remained in police custody at the Flying Squad Unit's (FSU) headquarters, the site of many previous allegations of police torture, until his September 9 release on police bond, without having been charged with any crime.

On May 11, local media reported that UPF officers arrested Ministry of East African Community Affairs' Principal Assistant Secretary James Okuja on allegations of torture. The UPF said Okuja instructed security guards at his hotel to detain two individuals, including a UPDF soldier whom Okuja accused of trespassing and damaging hotel toilets, and then burn him with a hot metal object. On May 16, the state charged Okuja with torture. The case continued at year's end.

There were no known updates on the trial of police officers Patrick Katete and Charles Okure concerning the 2016 torture and murder of Twaha Kasaija at Walukuba Police Station. ACTV reported in 2016 that, after police arrested Kasaija

on suspicion of theft, unidentified individuals beat him to death while he was in police custody.

The UHRC reported that during 2016, it awarded one billion shillings (\$275,000) in compensation to victims of torture.

On May 15, HRW reported that since 2015 UPDF soldiers (deployed as part of an African Union effort to eliminate the Lord's Resistance Army, a nonstate armed group) had sexually abused and exploited at least 13 women and girls in the Central African Republic. HRW reported that a UPDF soldier raped a 15-year-old girl in Obo village, while other soldiers offered food and money to girls and women in exchange for sex. According to HRW, in 2016 the UPDF investigated certain rape allegations against its soldiers and "found no evidence of wrongdoing." According to HRW, three of the victims said that UPDF soldiers threatened reprisals if they told Ugandan and UN investigators about the abuse.

Prison and Detention Center Conditions

Conditions in detention centers remained poor and, in some cases, life threatening. Serious problems included overcrowding, physical abuse of detainees by security staff and fellow inmates, inadequate food, and understaffing. Local human rights groups, including the ACTV, received reports of torture by security forces and prison personnel. Reports of forced labor continued. Most prisons did not have accommodations for persons with disabilities.

Physical Conditions: Gross overcrowding remained a problem. On June 19, Inspector General of Prisons Johnson Byabashaija told local media that the Uganda Prisons Service (UPS) held 55,784 inmates, yet its capacity was 22,000. Luzira Maximum Security Prison, the country's largest, housed 8,500 inmates, yet

its capacity was 3,000. At the three Kampala police stations FHRI visited through May, it found food shortages, overcrowding, and unsanitary living conditions. FHRI reported that at Katwe and Kabalagala police stations, detainees had to remain in a sitting position on the floor at night, because there was insufficient room for them to lie down. FHRI also reported that at the police stations it visited, the UPF fed detainees once daily and prisoners had to rely on family members to bring food for basic nutrition. FHRI also observed that detainees at Katwe, Wandegaya, and Kabalagala police stations did not have access to toilet paper or soap and had to secure these items personally through police officers. On September 12, Byabashaija told local media that the UPS required an additional 1,500 medical personnel to provide adequate medical services to its inmates.

In its 2016 annual report, the UHRC reported it inspected 164 of the country's 253 prisons and 292 of 296 police stations. The UHRC reported that at 52 of the country's 70 prison farms—correctional facilities designed to rehabilitate prisoners through agricultural production training—it visited, prisoners had to use water or leaves to clean themselves, as the UPS did not provide inmates with toilet paper. The UHRC also found that the UPS did not provide adequate soap at 78 percent of the prisons it visited. At one prison farm, the UHRC found that the UPS provided one bar of soap for more than 40 inmates to use for three months.

On May 23, the UHRC told the media that the UPF separated a lactating mother detainee at the FSU headquarters from her seven-month-old child and prevented her from breastfeeding for an unspecified period. The UPF denied the accusation. On June 6, the UPS told local media that 284 babies lived in the prisons with their mothers. The UHRC reported the women's sections at Luzira and Mbarara prisons had day-care centers. A local newspaper reported, however, it did not find any day-care facilities at the seven prisons it visited. Authorities in Kampala

separated pretrial detainees from convicted prisoners, but prison authorities in other parts of the country did not.

The UPS reported 67 inmate deaths in 2016. Causes of death included malaria, cardiac arrest, anemia, pneumonia, and tuberculosis. Media also reported deaths by suicide and police abuse.

FHRI reported that UPF officers at the Kisugu Police Post beat some detainees at night. It also reported that the UPF did not intervene to break up fights between detainees at Katwe Police Station.

Local media reported that at some prisons, inmates walked up to 15 miles to appear at their court hearings. The UPS told local media that inmates had to walk to court because it had insufficient vehicles to transport them and that some UPS staff transported inmates to court in their personal vehicles.

Administration: Although the UPF said its Police Standards Unit duly investigated accusations of improper conduct, its officers mistreated inmates, and the UPF frequently failed to investigate the accusations properly (see section 1.a.). Local television stations and newspapers published images of some of the Kaweesi murder suspects bearing deep wounds at their first court hearing on May 6, which the suspects said resulted from police torture. With no known investigation or evidence, the UPF told local media that the suspects bore those injuries before police arrested them.

Local media and NGOs reported the UPF occasionally prohibited visitors from accessing detainees. On May 15, local media reported that UPF personnel at the FSU headquarters had blocked Byamukama's family from visiting him since his arrest in late March and also prevented the families of 13 suspects in the

Kaweesi case from seeing their incarcerated relatives. On August 18, however, media reported that the UPF had since allowed Byamukama's wife to visit him.

Independent Monitoring: Although local NGOs such as FHRI and ACTV visited some detention facilities, ACTV reported the UPF and the UPS denied it permission to visit FSU headquarters and Luzira Prisons, where authorities detained individuals suspected of links to Kaweesi's killing. The International Committee of the Red Cross declined to comment on whether it conducted prison visits during the year.

Improvements: On June 19, the UPS told local media that it had transferred 100 inmates from Luzira Maximum Security prison and distributed them among Jinja, Nakasongola, Kitalya, and Kigo prisons to reduce congestion. The UHRC reported newly constructed and renovated cells, wards, stores, and offices at 12 percent of prisons. It also reported the UPS had phased out the use of buckets for collecting human waste at 38 percent of prisons and 15 percent of police stations.

D. ARBITRARY ARREST OR DETENTION

Although the law prohibits such practices, security forces often arbitrarily arrested and detained persons, including opposition leaders, politicians, activists, demonstrators, and journalists. The law provides for the right of persons to challenge the lawfulness of their arrest or detention in court, but this mechanism was seldom employed and rarely successful.

ROLE OF THE POLICE AND SECURITY APPARATUS

Under the Ministry of Internal Affairs, the UPF has primary responsibility for law enforcement. The UPDF, under the Ministry of Defense, is responsible for external security and may aid civil authorities when responding to riots or other

disturbances of the peace. The Chieftaincy of Military Intelligence is legally under UPDF authority and may detain civilians suspected of rebel or terrorist activity. Other agencies with law enforcement powers include the Directorate of Counter Terrorism, Joint Intelligence Committee, and Special Forces Brigade.

The security services continued to use excessive force, including torture, often failed to prevent societal violence, and at times targeted civilians. Local media reported on June 26 that the UPF fired on teenage students of Kacheera High School in Rakai District to disperse a protest, injuring three of them with gunshot wounds. Media reported the UPF shot students Hassan Magara in the groin and Jackie Ahimbisibwe and Boaz Serwanja in the thighs. The UPF said it arrested the officers involved and intended to charge them with “unlawful wounding.” The case was underway at year’s end.

On February 1, a police disciplinary court convicted nine UPF officers of unlawful or unnecessary exercise of authority, and with discreditable or irregular conduct, related to the 2016 public beatings of unarmed supporters of opposition leader Kizza Besigye in Kampala. The court demoted three senior officers and reprimanded the six others, fining each of the nine officers one-third of their monthly salary. A case against the inspector general of police (IGP) for his supervisory role during the beatings remained pending at year’s end.

Civilian authorities maintained effective control over the UPDF and UPF. Due to corruption, political interests, and weak rule of law, however, the government’s mechanisms to investigate and punish abuse were ineffective, and impunity was pervasive (see sections 1.a. and 1.c.). Despite the domestic and international controversy surrounding the UPDF’s 2016 raid on a traditional king’s palace in the western region, on January 10, the president promoted the raid commander, Brigadier General Peter Elwelu, to major general and appointed him commander of land forces.

As of year's end, former Kampala central police station commander Aaron Baguma's trial for his alleged role in a 2015 murder had yet to begin. The judiciary transferred the assigned trial judge in November 2016 but had yet to reassign the case. Baguma turned himself in to authorities in August 2016 after media reports incited a public outcry for justice and accountability. The court released Baguma on bail nine days after his arraignment, and he remained free while awaiting trial.

The UHRC reported it trained 221 UPDF soldiers on respecting human rights and freedoms in the performance of their duties.

ARREST PROCEDURES AND TREATMENT OF DETAINEES

The law requires that judges or prosecutors issue a warrant before an arrest is made, unless the arrest is made during commission of a crime or while in pursuit of a perpetrator. Nevertheless, authorities often arrested suspects without warrants. The law requires authorities to arraign suspects within 48 hours of arrest, but they frequently held suspects longer without charge. Authorities must try suspects arrested under the Antiterrorism Law within 120 days (360 days if charged with a capital offense) or release them on bail; if prosecution presents the case to the court before the expiration of this period, there is no limit on further pretrial detention. While the law requires authorities to inform detainees immediately of the reasons for detention, at times they did not do so. The law provides for bail at the judge's discretion, but many suspects were unaware of the law or lacked the financial means to cover the bond. Judges generally granted requests for bail. The law provides detainees the right to legal representation and access to a lawyer, but authorities did not always respect this right. The law requires the government to provide an attorney for indigent defendants charged with capital offenses. Citizens detained without charge have the right to sue the Attorney

General's Office for compensation for unlawful detention; however, this right was rarely exercised. Security forces often held opposition political members and other suspects incommunicado and under house arrest.

Arbitrary Arrest: Arbitrary arrests and unlawful detention, particularly of opposition political party members, remained problems. On September 12, the government initiated a process aimed at rescinding Article 102 (b) of the constitution, which prohibits anyone younger than 35 years and older than 75 years from running for president. Opponents of the amendment feared it would enable the president to remain in power indefinitely. Police regularly detained activists protesting the initiative and broke up public meetings and rallies perceived as opposing the amendment. In Rukungiri District, while dispersing an October 19 protest against the initiative, police arrested Besigye and detained him for six days without an arraignment. At his October 25 arraignment, the state charged Besigye with inciting violence, malicious damage to property, and disobeying a statutory authority, and released him on bail. Immediately after his release, however, police rearrested Besigye and detained him at Kampala Central Police Station, 230 miles away, before taking him home later the same day.

Besigye's trial for treason, related to his taking a mock presidential oath in May 2016, continued at year's end. Police had not concluded their investigation by year's end, and Besigye remained free on bail.

According to local media, the UPF detained without charge at least 13 children ages two to 15 years old for 51 days. According to police, the parents of the children were suspects in the killing of Assistant Inspector General Kaweesi. The UPF initially denied holding the children after their mothers made a public outcry for help via local media on May 7. The UPF then told the media on May 8 that it had been holding the children to protect them from their parents, who police claimed intended to traffic them. Local human rights NGOs asserted the police

took the children to pressure the parents to confess to the crime or provide information. On May 11, police released the children.

Pretrial Detention: Case backlogs due to an inefficient judiciary that lacked adequate funding and staff, the absence of plea bargaining prior to 2015, insufficient use of bail, and the absence of a time limit for the detention of detainees awaiting trial contributed to frequent prolonged pretrial detentions. FHRI and the UPS reported 52 percent of the country's 55,784 inmates were pretrial detainees. FHRI also reported 20 percent of prisoners had spent at least three years in pretrial detention. After a successful pilot program in 2014, the judiciary introduced a plea-bargaining mechanism to the High Court in 2015. The UPS reported that between June 2016 and June 2017, the judiciary reached plea bargains with 1,245 defendants. The judiciary's March-June report stated that the High Court concluded 2,010 capital cases through plea bargaining in 2016, at a third of the cost it would ordinarily take to do so.

E. DENIAL OF FAIR PUBLIC TRIAL

The constitution and law provide for an independent judiciary, but the government did not always respect this provision. Corruption, understaffing, inefficiency, and executive branch interference with judicial rulings often undermined the courts' independence.

The president appoints Supreme Court, Court of Appeal, and High Court judges and members of the Judicial Service Commission (which makes recommendations on appointments to the judiciary) with the approval of parliament.

Due to vacancies on the Supreme Court, Constitutional Court, High Court, and the lower courts, the judiciary did not deliver justice in a timely manner. At times the lack of judicial quorum precluded cases from proceeding.

Judicial corruption was a problem, and local media reported numerous cases where judicial officers in lower courts solicited and accepted bribes from the parties involved. On March 31, the chief justice accused the inspector general of government (IGG) of enabling corruption in the judiciary by refusing to prosecute a number of judicial officers caught accepting bribes. The IGG asserted that her office did not have the resources to prosecute low-level officers for accepting relatively small bribes and advised the judiciary to punish such officials with administrative measures.

TRIAL PROCEDURES

Although the law provides for a presumption of innocence, authorities did not always respect this right. Defendants have the right to be informed promptly and in detail of the charges against them and are entitled to free assistance of an interpreter. An inadequate system of judicial administration resulted in a serious backlog of cases, undermining suspects' right to a timely trial. Defendants have the right to be present at their trial and to consult with an attorney of their choice. The law requires the government to provide an attorney for indigent defendants charged with capital offenses. Defendants have the right to adequate time and facilities to prepare a defense and appeal. The law allows defendants to confront or question witnesses testifying against them and present witnesses and evidence on their own behalf, but authorities did not always respect this right. Defendants may not be compelled to testify or confess guilt, and they have the right to appeal.

All nonmilitary trials are public. A single judge decides cases in the High Court, while a panel of at least five judges decides cases in the Constitutional and Supreme Courts. The law allows military courts to try civilians that assist members

of the military in committing offenses or are found possessing arms, ammunition, or other equipment reserved for the armed forces.

POLITICAL PRISONERS AND DETAINEES

During the year authorities detained numerous opposition politicians and activists on politically motivated grounds. Authorities released many without charge but charged others with crimes including cyber harassment, inciting violence, holding illegal meetings, and abuse of office. No statistics on the number of political detainees or prisoners were available.

On April 7, the UPF arrested Makerere University lecturer Stella Nyanzi on a charge of cyber harassment for calling the president “a pair of buttocks” in a Facebook post (see section 2.a.). On April 10, the court remanded her to Luzira Prison, where she remained until the court released her on bail on May 10. Nyanzi’s lawyers said the UPS attempted to conduct a medical examination on Nyanzi by force, but she resisted. The UPS stated it was a routine medical examination conducted on all inmates. The state claimed that Nyanzi was mentally ill and requested the court order her to submit to a mental examination. Nyanzi petitioned the Constitutional Court to block the examination, and the case remained pending at year’s end.

On multiple occasions the UPS delayed or blocked visitors from seeing Nyanzi. On April 19, UPS personnel blocked Nyanzi’s children and lawyers from accessing her for four hours, saying the visitors did not have clearance, but later allowed them to see her. On April 22, UPS personnel blocked opposition leader Besigye from visiting Nyanzi, asserting that it was not a visitation day, but allowed him to visit other inmates that day in the same prison. Nyanzi’s family said that to stop Nyanzi from teaching and reading to other inmates, the UPS confiscated her

books and writings and instructed other inmates not to speak with her and to avoid her.

There was no available information on whether the government permitted international human rights or humanitarian organizations access to political detainees.

On July 13, the Constitutional Court issued an order to halt opposition politician Michael Kabaziguruka's military court trial until the court ruled on his application contesting the constitutionality of trying a civilian in a military court. In 2016 the state charged Kabaziguruka with treason in a military court alongside 26 others, allegedly for plotting a violent government takeover.

CIVIL JUDICIAL PROCEDURES AND REMEDIES

There is an independent and impartial judiciary in civil matters. Victims may report cases of human rights violations through the regular court system or the UHRC, which has judicial powers under the constitution. These powers include the authority to order the release of detainees, pay compensation to victims, and pursue other legal and administrative remedies, such as mediation. Victims may appeal their cases to the Court of Appeal and thereafter to the Supreme Court but not to an international or regional court. Civil courts and the UHRC have no ability to hold perpetrators of human rights abuses criminally liable, and bureaucratic delays hampered enforcement of judgments that granted financial compensation.

F. ARBITRARY OR UNLAWFUL INTERFERENCE WITH PRIVACY, FAMILY, HOME, OR CORRESPONDENCE

The constitution and law prohibit such actions, but there were reports the government failed to respect these prohibitions. Police did not always obtain search warrants to enter private homes and offices.

The Antiterrorism Act and the Regulation of Interception of Communications Act authorize government security agencies to tap private conversations to combat terrorism-related offenses. The government utilized both statutes to monitor telephone and internet communications.

The government continued to encourage university students and government officials, including members of the judiciary, to attend NRM political education and military science courses known as “chaka mchaka.”

Section 2.

Respect for Civil Liberties, Including:

A. FREEDOM OF EXPRESSION, INCLUDING FOR THE PRESS

The constitution and law provide for freedom of speech, including for the press, but the government often restricted this right.

Freedom of Expression: The government restricted the ability of some individuals to criticize it or to discuss matters of general public interest. It restricted some political buttons and symbols, music lyrics, and theatrical performances.

Local media reported that in response to public opposition to the government’s efforts to rescind Article 102 (b) of the constitution, the Uganda Communications Commission (UCC) issued several veiled warnings aimed at intimidating the public

and media organizations from using social media to oppose the change. The UCC's September 14 statement said, "Social and electronic communication platform users, account managers, and administrators should refrain themselves and group members against authoring, posting, receiving and sharing or forwarding any forms of electronic communications containing and or referring to illegal and/or offensive content to avoid the risk of being investigated and/or prosecuted."

On October 7, the UPF banned football fans from wearing red ribbons, which had become a symbol for opposition to the government's plan to rescind Article 102 (b) of the constitution. On October 17, the UPF banned member of parliament (MP) and musician Robert Kyagulanyi from performing concerts pending the police's investigation into allegations that Kyagulanyi used "words that incite the public" at an October 15 concert. On October 18, a UPF official warned musicians not to politicize their art, saying, "Music is not supposed to be partisan." On October 19, Kyagulanyi sued the government for 300 million shillings (\$82,500) in damages for infringing on his right to employment, freedom of speech, expression, association, and conscience. The case was pending at year's end.

On April 7, plain-clothed UPF officers arrested Makerere University professor Stella Nyanzi on charges of cyber harassment related to a series of Facebook (FB) posts in which she criticized the government's failure to fulfill the president's 2016 campaign pledge to provide sanitary pads for school girls and called the president "a pair of buttocks" (see section 1.e.). According to local media, the UPF interrogated Nyanzi about her posts for six hours on March 7 and told her she had offended the president. On March 18, airport immigration officers prevented Nyanzi from traveling to the Netherlands for an academic conference. Further, the state-controlled Makerere University suspended Nyanzi on March 31 for "continually insulting the first lady." On April 10, the state charged Nyanzi with

cyber harassment and offensive communication. A court released Nyanzi on bail on May 10, and the case continued at year's end.

Press and Media Freedom: The country had an active media environment with numerous privately owned newspapers and television and radio stations. These media outlets regularly covered stories and often provided commentary critical of the government and officials. The UPF's Media Crimes Unit, however, closely monitored all radio, television, and print media, and security forces subjected numerous journalists to harassment, intimidation, and arrest. Government officials and ruling party members owned many of the private rural radio stations and imposed reporting restrictions. Media practitioners said government and security agents occasionally called editors and instructed them not to publish stories that negatively portrayed the government. On September 14, local media reported that the president had warned FM radio stations that his government would not tolerate any that hosted opposition politicians who campaigned against government legislation.

Violence and Harassment: Security forces often harassed journalists. According to local media, on April 7, unidentified individuals kidnapped a local television journalist and held her for eight hours for posting messages on FB that supported Nyanzi's criticism of the government's failure to fulfill the president's campaign promise to distribute sanitary pads to poor girls. The kidnappers interrogated her about her connections with Nyanzi, beat her, cut off her hair, threatened to kill her and her family, and forced her to delete the FB posts. By year's end there was no known update on the investigation into the reporter's kidnapping.

On April 1, unidentified individuals broke into the office of local newspaper *The Observer*, taking at least 20 computers, the computer server, one camera, and a television, as well as the security camera footage covering the burglary. This

marked the second time in six months that unidentified individuals had broken into *The Observer's* offices (the first break-in occurred in October 2016). The Human Rights Network for Journalists (HRNJ), whose premises were also broken into in 2013 and 2015, criticized police for not taking these break-ins seriously; the HRNJ stated that as of September 19, the police investigation had not made progress on any of the break-ins. On September 19, *The Observer* stated that police had asked for money to facilitate the investigation and added there had been no updates from the police. According to *The Observer* and the HRNJ, investigations remained pending as of year's end.

Censorship or Content Restrictions: The government directly and indirectly restricted media coverage and content. On September 26, the UCC prohibited local television stations from live broadcasts of parliamentary proceedings after MPs brawled in the House, claiming that such broadcasts incited public violence and hatred. On October 5, the UCC lifted the ban.

On September 30, Kyagulanyi reported that the UCC had warned radio stations that they could be shut down if they allowed him to participate on their talk shows. The UCC, however, denied making this statement. Local media reported that the UCC also ordered some radio stations to dismiss employees who had criticized government's plan to rescind Article 102 (b) of the constitution and suspended the broadcasting licenses of those that refused to comply with the directive.

On April 21, after the IGP learned that four media outlets had been publishing leaked internal UPF information concerning Kaweesi's killing (see sections 1.a. and 1.c.) and the ensuing investigation, the IGP successfully petitioned the Constitutional Court to prohibit these outlets from reporting on these subjects, claiming the publications were "injurious" to the investigation.

Many print and broadcast journalists practiced self-censorship, particularly when reporting on the president and his inner circle.

Libel/Slander Laws: Authorities used libel and slander laws to suppress criticism of government officials. On June 20, the UPF detained, questioned, and later released Ben Byarabaha, editor of local newspaper *Red Pepper*, whom it accused of offensive communication, following the newspaper's report the IGP was ill. The UPF said the report was false.

National Security: Local media reported that a UPF disciplinary tribunal charged two officers with breach of confidence for recording and then sharing images from the November 2016 UPDF and UPF raid on the Rwenzururu Kingdom's palace. This case was pending at year's end.

INTERNET FREEDOM

There were allegations that government security agents censored online content by harassing and threatening authors of online statements that criticized the government or government officials. Although the government did not restrict or disrupt access to the internet during the year, it established the legal authority to do so in the future. An amendment to the Uganda Communications Act, passed by parliament on April 6, authorizes the minister of information to regulate communications, including blocking access to the internet, without parliament's approval. The amendment also affords parliament the ability to block any communication regulation issued by the minister within 30 days of issuance.

On June 28, local media reported that the government had created the Government Citizen Interaction Center, which would "scrutinize FB profiles and follow up on people who are angry with government, so it could give them

solutions.” Several journalists reported that security agents monitored them and threatened to attack them if they continued to criticize the government on social media. Two bloggers reported in April they received threatening messages on FB demanding they stop posting messages in support of Nyanzi.

Citing the Antiterrorism Act, the Regulation of Interception of Communications Act, and the Computer Misuse Act, the government monitored social media. According to local media, the minister for information told a crowd gathered to mark World Communications Day on May 28 that the government was filtering social media content because internet users “have taken advantage of such platforms to terrorize the country.”

According to the International Communication Union, approximately 22 percent of the population used the internet in 2016.

ACADEMIC FREEDOM AND CULTURAL EVENTS

The government occasionally restricted academic freedom and cultural events. On May 16, media reported that the Uganda Media Council prohibited the embassy of the Netherlands from screening *The Dinner Club* during the European Film Festival because the film “depicted and glorified homosexuality, which is a criminal offense in Uganda.” In a public statement, the Netherlands embassy stated it “deplores” the government’s decision and would withdraw from the film festival.

B. FREEDOMS OF PEACEFUL ASSEMBLY AND ASSOCIATION

The government limited freedoms of peaceful assembly and association.

FREEDOM OF PEACEFUL ASSEMBLY

While the constitution provides for freedom of assembly, the government did not respect this right. The government used the 2013 Public Order Management Act to limit the right to assemble and disrupted opposition and civil society-led public meetings and rallies. The act also placed a significant bureaucratic burden on those wishing to organize or host gatherings and afforded the UPF wide discretion to prevent an event by refusing to approve it, or, more commonly, by not responding to the permission request, which then created a legal justification for disrupting almost any gathering.

According to local media, between September 12 and November 9, the UPF dispersed at least 30 rallies protesting the government's plan to rescind Article 102 (b) of the constitution and arrested at least 170 protesters. On October 19, the UPF shot and killed three persons in Rukungiri District who were protesting against the government's plan to rescind the article. On July 19, local media reported that the UPF arrested more than 60 persons, at various venues in Kampala, who were protesting against the proposed constitutional amendment. The UPF claimed the assemblies were unlawful and detained participants at FSU headquarters for three days before releasing them without charge. Such arrests of persons peacefully protesting efforts to amend the constitution occurred throughout the fall.

FREEDOM OF ASSOCIATION

While the constitution and law provide for freedom of association, the government did not always respect this right and restricted the operations of local NGOs, especially those that work on civil and political rights (see section 5). On May 5, the government published implementing regulations for the 2015 NGO Act. The

regulations require NGOs to disclose sources of funding and personal information about their employees and impose onerous registration and reporting requirements. The regulations enables the NGO Bureau and its local level structures to deny registration to any organization focused on issues deemed to be “undesirable” or “prejudicial” to the “dignity of the people of Uganda.” The regulations also provide the NGO Bureau broad powers to inspect NGO offices and records and to suspend their activities without due process. The regulations increase registration and annual permit renewal fees for local NGOs from 20,000 shillings (\$5.50) to 100,000 (\$27.50), and from 20,000 shilling (\$5.50) to 60,000 shillings (\$16.50), respectively. They also introduce new fees, including for the NGO Bureau to review permit applications (60,000 shillings, or\$16.50) and for NGOs to file annual reports (50,000 shillings, or\$13.80).

The Human Rights Awareness and Promotion Forum (HRAPF) said police concluded the investigation into the 2016 break-in into HRAPF offices, which included the killing of a guard, and that they found it was a normal burglary with no correlation to the organization’s work. The HRAPF stated that police did not provide any evidence to support this conclusion.

C. FREEDOM OF RELIGION

See the Department of State’s *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

D. FREEDOM OF MOVEMENT

The constitution and law provide for freedom of internal movement, foreign travel, emigration, and repatriation, and the government generally respected these rights.

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to internally displaced persons, refugees, returning refugees, asylum seekers, stateless persons, or other persons of concern. The government continued to uphold its enabling asylum policies and practices towards refugees and asylum seekers from various countries, mainly from South Sudan, the DRC, Burundi, and Somalia. Most refugees enjoyed unhindered access to asylum, freedom of movement, freedom of residence, right to registration and documentation, and access to justice, education, health care, and employment

Abuse of Migrants, Refugees, and Stateless Persons: Some South Sudanese refugees reported that customs officials at border points confiscated their motorbikes and vehicles. Customs officials said they would release these items when the owners could present documentation establishing their ownership. Some of the affected refugees stated that they were unable to provide such documentation because they had fled their homes due to the conflict in South Sudan, and they asserted that the customs officials were requiring documents as a ploy to steal their possessions. UNHCR and government authorities continued to investigate these incidents at year's end.

According to UNHCR, the UPF was unable to protect fully refugees in several of the large refugee settlements because of insufficient equipment, transportation, and personnel. As of year's end, Bidi Bidi refugee settlement, one of 21 refugee settlements in the country, hosted more refugees than any other settlement in the world. UNHCR received reports that South Sudanese armed groups had infiltrated some refugee settlements near the border with South Sudan and abducted South Sudanese men to force them to fight in the country's civil war. UNHCR reported the government deployed additional troops to improve its border surveillance and was investigating the alleged abductions.

PROTECTION OF REFUGEES

Access to Asylum: The law provides for the granting of asylum or refugee status and the government has established a system for providing protection to refugees. While individuals fleeing South Sudan have prima facie refugee status (status without determination of individual refugee status), the Refugee Eligibility Committee determines whether individuals fleeing from the DRC, Somalia, and Burundi are eligible for refugee status. The committee was functional, but administrative issues and the continued influx of asylum seekers from the DRC and Burundi created a case backlog.

Safe Country of Origin/Transit: The country does not have a policy of presumptive denials of asylum to applicants. There were reports, however, that police officers at the asylum registration office in Kampala turned away two lesbian, gay, bisexual, transgender, and intersex (LGBTI) individuals who sought asylum due to discrimination in their home countries (Kenya and Afghanistan), in violation of the country's asylum policy.

Durable Solutions: The government did not accept third-country refugees for resettlement, but it assisted in the safe and voluntary return of refugees to their homes and supported the resettlement of third-country refugees to other countries by providing birth certificates and travel documents. Following a 2015 constitutional court ruling that confirmed the right to naturalization for certain long-term refugees, however, the government in May 2016 committed to begin processing naturalization cases for an estimated 15,000 refugees who had resided in the country for approximately 20 years. By year's end there were no known cases of a refugee having naturalized.

Section 3.

Freedom to Participate in the Political Process

The law provides citizens the ability to choose their government through free and fair periodic elections held by secret ballot and based on universal and equal suffrage. Nevertheless, the February 2016 presidential and National Assembly elections were marred by serious irregularities. The 2015 amendment to the Local Government Act instructs authorities to carry out elections for the lowest-level local government officials by having voters line up behind their preferred candidate or the candidate's representative, portrait, or symbol. Civil society organizations criticized this legislation, saying it violated citizens' constitutional right to vote by secret ballot. On December 20, Parliament passed a bill removing presidential age limits from the constitution, and on December 27, President Museveni signed the bill, thereby paving the way for him to run for another term. During the period before passage of the bill, the government limited freedoms of speech and assembly.

Elections and Political Participation

Recent Elections: In February 2016 the country held its fifth presidential and legislative elections since President Museveni came to power in 1986. The president was re-elected with 61 percent of the vote, and Forum for Democratic Change (FDC) candidate Besigye finished second with 36 percent. The ruling NRM party captured approximately 70 percent of the seats in the 431-member unicameral National Assembly.

Domestic and international election observers stated that the elections fell short of international standards for credible democratic elections. The Commonwealth Observer Mission's report noted flawed processes, and the EU's report noted an atmosphere of intimidation and police use of excessive force against opposition supporters, media workers, and the general public. Domestic and international election observers noted biased media coverage and the Electoral Commission's (EC) lack of transparency and independence.

Media reported voter bribery, multiple voting, ballot box stuffing, and the alteration of precinct and district results.

Late delivery of voting materials on election day, including ballots, disenfranchised many voters. The most significant delays—up to eight hours—occurred in opposition-affiliated areas, including Kampala and Wakiso Districts. While the EC extended voting from 4 p.m. to 7 p.m. at a number of polling stations that experienced delayed starts, officials at more than 30 of the most delayed stations cancelled voting and postponed it to the following day.

During the 10-day period in which opposition candidates could contest election results, police confined Besigye to his home and limited his access to his lawyers and party leadership. Besigye's lawyers claimed the police actions rendered it impossible for Besigye to file a legal challenge to the election results, although Amama Mbabazi, who came third in the election, did challenge the results. In March 2016 the Supreme Court upheld Museveni's victory, ruling that any incidents of noncompliance with electoral laws before and during the election process did not substantially affect the results. In August 2016 the Supreme Court recommended changes to electoral laws to increase fairness, including campaign finance reform and equal access for all candidates to state-owned media. The Supreme Court instructed the attorney general to report in two years on the government's implementation of the reforms.

Domestic election observers reported irregularities during 2017 parliamentary by-elections. The Citizens Coalition for Electoral Democracy in Uganda (CCEDU) reported incidents of ruling political party members bribing voters, and that the government deployed UPDF and UPF personnel on voting day, and during campaigns for the June 29 Kyadondo East by-election, to intimidate opposition supporters. Local media and the FDC also reported the UPF deployed a large number of police to intimidate opposition supporters during the campaign for the May 11 Kagoma County by-election and took no action to stop ruling party supporters who attacked them.

Political Parties and Political Participation: According to the EC, there were 29 registered political parties. Security forces arbitrarily arrested and detained opposition leaders and intimidated and beat their supporters. While the ruling NRM party operated without restriction, regularly holding rallies and conducting political activities, authorities often prevented opposition parties and critical civil society organizations from organizing meetings or conducting activities. According to local media, on September 9, authorities in Kabale District instructed radio stations not to allow opposition supporters to participate on radio or television talk shows.

The CCEDU reported that authorities responsible for the parliamentary by-elections denied its observers access to witness all aspects of the voting process.

Participation of Women and Minorities: No laws limit the participation of women and/or members of minorities in the political process.

Cultural factors limited women's political participation. Local NGOs reported that in rural communities, husbands restricted their wives from contesting for public office.

Section 4.

Corruption and Lack of Transparency in Government

The 2009 Anticorruption Act provides criminal penalties of up to 12 years' imprisonment for official corruption. A 2015 amendment to the act mandates confiscation of the convicted persons' property. Nevertheless, the government did not implement the law effectively, and officials frequently engaged in corrupt practices with impunity. Government up to the highest levels lacked the political will to combat corruption, and many corruption cases remained pending for years. Media reported numerous cases of government corruption during the year. Police arrested and suspended several police officers implicated in bribery, extortion, and corruption cases. Authorities arrested several magistrates and judicial officials for forgery as well as for soliciting and receiving bribes.

During the year a number of reports alleged that ruling party officials bribed MPs to support a constitutional amendment to remove presidential age limits, which would enable President Museveni to run for another term.

On May 8, the minister of state for privatization and investment announced the establishment of the Uganda Investment Authority Anti-Corruption Hotline. The minister of state also noted that army personnel would staff the hotline due to corruption in the civil service.

On March 31, the chief justice criticized the IGG for pardoning magistrates caught in acts of corruption (see section 1.e.).

Corruption: In January the president was widely condemned after local media reported he had approved performance awards totaling six billion shillings (\$1.7

million) for 42 high-ranking government officials for their work to secure \$400 million in capital gains tax during a protracted court case involving an oil deal. The recipients, including senior officials from the Uganda Revenue Authority, Attorney General's Office, Ministry of Finance, Planning and Economic Development, and Ministry of Energy and Mineral Development, received payments ranging from 45 million shillings (\$12,400) to 267 million shillings (\$73,500). Civil society activists and parliamentarians asserted the rewards had violated the 2015 Public Finance Management Act (PFMA). While President Museveni maintained the recipients deserved their awards, during an April 27 meeting with the parliamentary committee investigating the legality of the payments, the president acknowledged he did not follow the appropriate process. On June 22, the investigating committee released a report concluding that the awards violated the PFMA and Public Service Standing Orders on rewarding public officers and recommended the recipients return the money with interest. Parliament unanimously adopted the report, but it was waiting for approval from the Prime Minister's Office at year's end.

On March 28, police arrested Ministry of Finance and Economic Planning Principal Finance Officer Charles Ogol and Senior Economist Geoffrey Turyamuhika for allegedly soliciting bribes from the Guagzhou Dongsongh Energy Group in exchange for expedited documentation processing for the financing and construction of a power substation and transmission line. On March 30, local media reported that the investors had complained about the solicitation to the president, who then ordered the police to conduct a sting operation to catch the two men in the act of receiving the bribe. Police caught Ogol and Turyamuhika receiving 58 million shillings (\$16,000) of the 1.1 billion shilling (\$303,000) they had requested. Local media reported that civil society activists criticized the arrests for focusing only on lower-level officials. On April 9, the court remanded the two men

on charges of corruption and granted them bail on April 20. The case was underway at year's end.

The 2016 Office of the Auditor General report to parliament found that approximately 168 billion shillings (\$46 million) was spent on items unrelated to the intended purpose of the funds and that a number of ministries, departments, and agencies improperly transferred an estimated 2.3 billion shillings (\$633,000) to civil servants' personal accounts. The report also concluded that local-level government officials had become increasingly corrupt.

In February 2016 the Global Fund reported the government failed to account for \$21.4 million (equivalent to 78 billion shillings) of donated medicines stored in government-operated warehouses and \$2.4 million (equivalent to 8.7 billion shillings) worth of donated HIV/AIDS test kits. On May 15, the Global Fund Office of the Inspector General (OIG) reported its internal investigation found that more than 80 percent of the unaccounted for medicine and test kits were erroneously reported missing due to inaccurate data in the Uganda National Medical Stores' recordkeeping and inventory tracking systems. The OIG acknowledged, however, that almost 20 percent of the medicine in question remained unaccounted for. Following the OIG report, the Global Fund worked with the government to ensure more accurate reporting.

Financial Disclosure: The 2002 Leadership Code Act requires public officials to disclose their income, assets, and liabilities, and those of their spouses, children, and dependents, within three months of assuming office, and every two years thereafter. The requirement applies to 42 position classifications, totaling approximately 25,000 officials, including ministers, members of parliament, political party leaders, judicial officers, permanent secretaries, and government department heads, among others. Public officials who leave office six or more months after their most recent financial declaration are required to refile. The IGG is

responsible for monitoring compliance with the declaration requirements, and penalties include a warning, demotion, and dismissal. In August 2016 the IGG launched an online system to make it easier for officials to declare their wealth. According to Transparency International, however, most officials did not comply with the disclosure requirements and those who did tended to underreport their assets.

While these financial disclosures were officially considered public information, the Hub for Investigative Media (HIM), a local NGO promoting government transparency, reported the IGG had not made this information publicly available or approved any requests to release individual declarations. According to HIM, the IGG said that, while this information was supposed to be publicly available, the 2005 Access to Information Act exempts the government from releasing information that would violate an individual's personal privacy. The IGG had not released this information, therefore, due to concerns that public officials might sue the IGG under this statute. HIM stated the government intended to amend the act to revoke public access to officials' financial declarations.

Section 5.

Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Abuses of Human Rights

Government restricted domestic and international NGOs focused on governance and human rights, including by freezing two organizations' bank accounts. Accusing them of working to destabilize the government by opposing the government's plan to rescind Article 102 (b) of the constitution, on September 20,

the UPF raided the Kampala offices of human rights NGOs ActionAid and Great Lakes Institute for Strategic Studies (GLISS) and raided Solidarity Uganda's (SU) office in Lira District. Police had secured a search warrant from a magistrate granting them access to the offices' premises and documents. NGO staff described the raids as "cordon and search operations," during which staff were prevented from leaving the compound for several hours while police conducted a room-by-room search. According to local media, police confiscated documents, telephones, and computers from the three offices and arrested one SU employee. On September 22, the UPF accused the organizations of "receiving foreign funding to support illegal activities, foment civil unrest, and destabilize the government." On October 3, authorities directed commercial banks to freeze the business bank accounts of ActionAid and GLISS, and those of GLISS' staff, as part of an investigation into alleged "conspiracy to commit a felony and money laundering." On October 11, the NGO Bureau directed 25 NGOs (including GLISS, SU, and ActionAid) to provide a substantial volume of documents, including work plans, and certified copies of bank statements since 2014 within seven days of the directive. Affected NGOs complained that this directive created an onerous burden and violated the 2015 NGO Act's stipulation that registered organizations would not have to provide additional documentation prior to the renewal of their operating permit, without due cause, which was not provided. The government continued the freeze on the accounts at year's end.

Authorities denied LGBTI-related organizations official status due to discriminatory laws preventing their registration, however, and NGOs that worked in the areas of governance, human rights, and political participation were sometimes subject to extra scrutiny. The government was often unresponsive to concerns of local and international human rights organizations, and government officials often dismissed NGO claims of human rights abuses by security forces.

In March, HRW reported security forces used excessive force during the November 2016 raid on King Mumbere's palace, killing more than 100 persons (see section 1.a). HRW called for the suspension of the operation's commanding officers and an independent investigation into the security forces' actions. On March 15, Media Center Executive Director Ofwono Opondo said HRW's report lacked depth and ignored the deaths of security officers prior to the raid.

Some human rights activists faced intimidation in the course of their work. In May local human rights organization Chapter Four stated police in Kasese arrested its researcher three times for recording statements from persons affected by the raid on the king's palace. According to Chapter Four, police held the researcher for one or two days each time and then released him without charge.

On August 18, the HRAPF stated that police had closed their investigation into the June 2016 break-in at its office without making any arrests, despite having received security camera footage showing the intruders inside the office. According to the HRAPF, the police concluded the break-in, during which the robbers killed the security guard, was a common robbery.

Government Human Rights Bodies: The UHRC is a constitutionally mandated institution with quasi-judicial powers to investigate allegations of human rights abuses, direct the release of detainees, and award compensation to abuse victims. The president appoints its board, consisting of a chairperson and five commissioners.

The UHRC, which had 21 branches nationwide, pursued suspected human rights abusers, including in the military and police forces. The UHRC's 2016 annual report, released on May 25, recorded 848 human rights cases, an increase of 16 percent from 2015. According to the report, the increase was attributed to increased public awareness of the UHRC's complaint mechanisms. For the

seventh straight year, the highest number of complaints, 73 percent, was against the UPF, of which approximately 40 percent concerned torture and mistreatment. Seven percent of all complaints were against the UPDF, with more than 60 percent of those cases related to torture and mistreatment. By violations, the highest number of cases, 51 percent, involved deprivation of personal liberty by detention beyond 48 hours prior to arraignment—a 77 percent increase from 2015. The second most common violation, 45 percent of cases, was torture and cruel, inhuman, or degrading treatment or punishment, a 10-percent increase from 2015. The UHRC attributed these increases in torture and personal liberty cases to security forces' heavy-handed responses to opposition activities during the 2016 general elections, as well as postelection violence in Kasese and Bundibugyo Districts. The UHRC noted that torture remained prevalent despite the 2012 Prevention and Prohibition of Torture Act. Additionally, the UHRC found that detention beyond 48 hours prior to arraignment remained a problem due to alleged absenteeism of some court magistrates, delays by prosecutors to approve charges submitted by police, lack of resources for police to transport suspects to court, and, at times, police corruption or abuse of office.

According to human rights activists, many victims of torture to whom the UHRC had awarded compensation never received their payment from the government. In 2016 the UHRC awarded an estimated one billion shillings (275,000) in compensation to victims of human rights violations, of which it allocated 40 percent to victims of torture. The UHRC reported the government paid out 35 percent of the total compensation it awarded in 2016. The UHRC stated that in November 2016, the president directed the Ministry of Finance, Planning, and Economic Development to ensure that the five billion shillings (\$1.4 million) in outstanding compensation awards owed to victims of human rights violations, be fully paid by the end of the country's 2017-18 financial year (June 30, 2018).

Many human rights activists asserted the UHRC lacked the political influence and government support to investigate or identify senior-level officials accused of committing abuses. In May the UHRC summoned senior officials from the Office of the IGP, the UPS, the UPF, the Ministry of Defense, and the UPDF to respond to torture allegations; however, while senior officials from the other agencies attended, the IGP did not attend the meeting or send a representative. According to the UHRC's 2016 report, the only recommendation the government enacted from its 2015 report was to amend the Children Act, which the UHRC initially recommended in 2011. The UHRC noted that the government also partially implemented 63 percent of its 2015 recommendations, many of which the UHRC had been recommending for several years, including training for parliament on international human rights principles, to ensuring new legislation was in compliance with relevant laws, and translating the constitution into four of the country's 40 official languages. The government took no action on 36 percent of the 2015 recommendations.

In 2016 the UHRC received 20.6 billion shillings (\$5.7 million) in total funding, of which 13.8 billion shillings (\$3.8 million) was from the government, and 6.8 billion shillings (\$1.9 million) from development partners. Despite having received a 34 percent funding increase compared with 2015, the UHRC's total funding for 2016 was 6.4 billion shillings (1.76 million) less than its budget request of 27 billion shillings (\$7.4 million). The UHRC stated it lacked sufficient funds to implement its mandated activities fully.

The International Crimes Division (ICD) of the High Court, established by judicial decree in 2011, has jurisdiction over genocide, crimes against humanity, war crimes, terrorism, human trafficking, piracy, and other international crimes defined in domestic law. Lack of resources and personnel hindered the ability of the ICD to conduct investigations and prosecutions of war crimes and crimes against

humanity committed in the country. The ICD arraigned Commander Thomas Kwoyelo in 2011 on charges of breaches of the Geneva Conventions, but the start of his trial was repeatedly delayed. In 2014 Kwoyelo's complaint against the government for indefinite detention was accepted by the African Commission on Human and People's Rights, and, according to Kwoyelo's lawyers, the request remained pending at year's end.

The former commander of the Allied Defense Forces, Jamil Mukulu, was arrested in Tanzania in 2015 and extradited to the country on charges of grave breaches of the Geneva Conventions for his role in a 1998 attack on a student dormitory that killed more than 100 persons. The state prosecutors failed to produce Mukulu for trial during the year.

Section 6.

Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law criminalizes rape, which is punishable by life imprisonment or the death penalty. The law does not address spousal rape. The penal code defines rape as "unlawful carnal knowledge of a woman or a girl without her consent." Men accused of raping men are tried under section 145(a) of the penal code that prohibits "carnal knowledge of any person against the order of nature." The law also criminalizes domestic violence and provides up to two years' imprisonment for conviction.

Rape remained a common problem throughout the country, and the government did not effectively enforce the law. The *2016 Demographic and Health Survey* (DHS) reported women were more than twice as likely as men to experience sexual

violence. Local media reported numerous incidents of rape, often committed by persons in positions of authority, including police officers, employers, local government leaders, religious leaders, teachers, and soldiers. In many rape cases, the perpetrator also killed the victim.

According to the NGO Uganda Association of Women Lawyers (FIDA), incidents of rape and statutory rape were not commonly reported, in part due to societal factors. Parents, husbands, local leaders, religious leaders, police, prosecutors, and sometimes courts pressured victims to settle cases out of court, supposedly to “spare” the victim and her family from the social stigmatization. Of the cases brought to trial, few were completed.

Gender-based violence (GBV) was also common. The UPF recorded 163 deaths of women due to domestic violence in 2016, almost a 50 percent increase from 2010. International NGO FHI 360 reported in April that cultural factors fueled GBV. Its study found that 54 percent of women said it was acceptable for a husband to beat his wife if she cheated on him, and 21 percent said it was acceptable for a husband to beat his wife if she denied him sex.

FIDA reported it worked with the judiciary to organize two weeks of special court sessions between November and December 2016 focused solely on GBV cases in eight districts in northern and eastern areas. The sessions concluded 326 GBV cases. On June 20, the World Bank announced a \$40 million (144 billion shillings) loan to the government to implement its 2016 Elimination of Gender Based Violence Policy. The loan, for which a memorandum of understanding was signed in October, focused on promoting behavioral change to prevent GBV and improving referral mechanisms and assistance services for GBV victims.

Female Genital Mutilation/Cutting (FGM/C): The law prohibits FGM/C and establishes a maximum penalty of 10 years’ imprisonment for convicted

perpetrators, or life imprisonment if the victim dies. According to UNICEF statistics from February 2016, 1 percent of women under age 50 had undergone FGM/C. Local NGOs reported that many girls who had undergone FGM/C were discouraged from delivering in health centers to avoid revealing they had been cut.

On May 15, the UPF told local media that it conducted a radio campaign to raise communities' awareness of the dangers of FGM/C. Local NGOs Development Network of Indigenous Voluntary Associations (DENIVA) and Law and Advocacy for Women in Uganda (LAW) reported that the Ministry of Gender, Labor, and Social Development worked with civil society organizations to train UPF and judiciary personnel on FGM/C practices and how to handle such cases.

On May 30, local media reported the UPF had insufficient resources to monitor adequately the remote areas of the northeast where FGM/C was prevalent, which allowed many practitioners to continue working with impunity. DENIVA and LAW reported the absence of courts in Amudat and Kween Districts and a shortage of clinics that could provide medical evidence made it difficult to prosecute perpetrators. Local NGOs conducted training for practitioners in communities where FGM/C was prevalent to encourage them to end the practice.

According to Deniva, the government also built an unspecified number of girls-only boarding schools in northeastern and eastern areas to provide shelter for girls who fled their homes due to familial pressure to undergo FGM/C, or those who fled after being cut.

Other Harmful Traditional Practices: Media and local NGOs reported several cases of ritual child killings, violence against widows, and acid attacks. According to local media, traditional healers kidnapped and killed children to use their organs for ancestral worship. Local NGOs reported cases in which wealthy entrepreneurs

paid traditional healers to sacrifice children to ensure their continued wealth and then bribed police officers to stop the investigations. On February 6, local media reported that the UPF arrested traditional healer Godfrey Lukeera in the South after security forces found the mutilated body of a five-year-old boy at his shrine. The state charged Lukeera with murder on March 8 and remanded him to Masaka Prison. The case continued at year's end.

Sexual Harassment: The law criminalizes sexual harassment and provides for penalties of up to 14 years' imprisonment, but authorities did not effectively enforce the law. Sexual harassment was a widespread problem in homes, schools, universities, and workplaces. FIDA reported that most women declined to report sexual harassment due to fear of social stigmatization, and that those who did report it tended only to do so in conjunction with other violations. According to FIDA, the UPF recorded 548 cases of sexual harassment from January through March.

Local media and civil society also reported that the UPF often refused to investigate accusations of sexual harassment in the workplace or educational institutions. Most of these cases involved supervisors or teachers exploiting their authority; other cases were between peers.

Coercion in Population Control: There were no reports of coerced abortion, involuntary sterilization, or other coercive population control methods. Estimates on maternal mortality and contraceptive prevalence are available at:

www.who.int/reproductivehealth/publications/monitoring/maternal-mortality-2015/en/.

Discrimination: The law provides women the same legal status and rights as men. Local NGOs reported numerous cases of discrimination against women, including in divorce, employment, education, and owning or managing businesses and property. Many customary laws discriminate against women in adoption, marriage,

divorce, and inheritance. Under customary laws in many areas, women could not own or inherit property or retain custody of their children if they were widowed. Traditional divorce law in many areas required women to meet stricter evidentiary standards than men to prove adultery. In some ethnic groups, men could “inherit” the widows of their deceased brothers. The law does not recognize cohabiting relationships, and women involved in such relationships had no judicial recourse to protect their rights.

Children

Birth Registration: The law accords citizenship to children born in or outside the country if at least one parent or grandparent is a citizen at the time of birth. Abandoned children under the age of 18 with no known parents are considered citizens, as are children under 18 adopted by citizens.

The law requires citizens to register a birth within three months. According to the 2011 DHS, only 29 percent of rural and 38 percent of urban births were registered. Lack of birth registration generally did not result in denial of public services. Some primary schools, however, required birth certificates for enrollment, especially those in urban centers. Enrollment in public secondary schools, university, and tertiary institutions required birth certificates. For additional information, see Appendix C.

Education: The law provides for compulsory education through the completion of primary school at age 12, and the government provided tuition-free education to four children per family in select public primary and secondary schools (ages six to 18 years). Parents, however, were required to provide lunch and schooling materials for their children.

Child Abuse: Child abuse remained a common problem, including sexual assault, physical abuse, ritual killings, early marriage, human trafficking, drug and substance abuse, involvement in social unrest, and forced engagement in criminal activities. The Uganda Child Helpline received 1,607 reports of children's rights violations from January through June, with denial of education being the most prevalent, followed by statutory rape and child marriage.

The law defines "statutory rape" as any sexual contact outside marriage with a child under the age of 18, regardless of consent or age of the perpetrator, carrying a maximum penalty of death. Victims' parents, however, often opted to settle cases out of court for a cash or in-kind payment. The minimum age for consensual sex is 18.

The government continued to work with UNICEF and NGOs—including Save the Children, Child Fund, and the African Network for the Prevention and Protection against Child Abuse and Neglect—to combat child abuse. The UPF provided free rape and statutory rape medical examination kits to hospitals and medical practitioners throughout the country to assist with investigations.

Corporal punishment was illegal but remained a problem in schools and sometimes resulted in serious injuries. The 2015 Children Amendment Act made corporal punishment in schools illegal and punishable by up to three years' imprisonment. The amendment also sought to protect children from hazardous employment and harmful traditional practices, including child marriage and FGM/C.

Early and Forced Marriage: The legal minimum age for marriage is 18, but authorities generally did not enforce this law in rural areas. Some parents commonly arranged marriages for their underage daughters. UNICEF's 2016 *State of the World's Children* report estimated that 10 percent of girls married before age 15 and 40 percent before age 18. The Ministry of Gender, Labor, and Social

Development reported that from January through June, it annulled 35 child marriages and stopped five from taking place. For additional information, see Appendix C.

Sexual Exploitation of Children: The law prohibits commercial sexual exploitation, the sale and procurement of sexual services, and practices related to child pornography. The government did not enforce the law effectively, however, and the problem was pervasive.

Child Soldiers: The Lord's Resistance Army continued to hold Ugandans, including children, against their will beyond Uganda's borders.

Infanticide or Infanticide of Children with Disabilities: The Uganda Child Helpline received two reports of infanticide from January through June.

Displaced Children: Families in the remote North East Karamoja Region sent many children to Kampala during the dry season to find work and beg on the streets. Authorities worked with civil society organizations to return Karamojong street children to their families. Local media, however, reported that police often found those same children back on Kampala's streets soon thereafter.

Institutionalized Children: Local NGOs reported that the UPF often detained child and adult suspects in the same cells and held them beyond the legal limit of 48 hours prior to arraignment. The local NGO Uganda Child's Rights Network reported that some juvenile detention centers in the east denied their inmates the right to education.

By regulations an approved orphanage "shall only receive children in an emergency from a police officer or under an interim care order from a judge." All approved homes are required to keep proper accounts, employ a qualified warden

and registered nurse, keep health records for each child, provide adequate sleeping facilities, and provide for an appropriate education. Nevertheless, the government lacked the resources to register and monitor orphanages.

In 2015 the Ministry of Gender, Labor, and Social Development estimated there were more than 50,000 children in approximately 1,000 orphanages, of which only 83 were licensed by the ministry. More than half of all orphanages did not meet minimal standards and housed children illegally. Nearly 70 percent of orphanages maintained inadequate records.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parental Child Abduction* at travel.state.gov/content/childabduction/en/legal/compliance.html.

Anti-Semitism

The Jewish community had approximately 2,000 members centered in Mbale District, in the eastern part of the country. There were no reports of anti-Semitic acts.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law prohibits discrimination against persons with physical, sensory, intellectual, or mental disabilities. The law provides for access to all buildings “where the public is invited,” and information and communications for persons with disabilities, but the government did not effectively enforce the law. The Equal Opportunities Commission reported in February that most public buildings in Kampala were inaccessible to persons with disabilities, due to a lack of ramps or elevators.

Persons with disabilities faced societal discrimination, limited job and educational opportunities, and most schools did not accommodate persons with disabilities. The Ministry of Gender, Labor, and Social Development and the National Council on Disability were the government agencies responsible for protecting the rights of persons with disabilities. Local media reported most schools did not make accommodations for students with disabilities. Local media said that due to discriminatory behavior by students and teachers, a lack of trained special education teachers, and limited specialized learning resources, children with disabilities were often absent from school.

The National Union for Disabled Persons of Uganda, media, and government officials said there was insufficient government funding for welfare programs for persons with disabilities. Due to continued decreases in government funding for training “Special Needs Education” teachers, the Ministry of Education certified seven new teachers in 2016, compared with approximately 30 per year a decade before. The Ministry of Education’s principal officer for inclusive education stated that, despite funding limitations, the government provided an additional two to three million shillings (\$550-\$825) each quarter to schools known to have children with disabilities.

National/Racial/Ethnic Minorities

There were reports of violence among ethnic groups over land, grazing rights, water access, border demarcations, and other matters. On June 9, local media reported that unidentified individuals attacked members of the Acholi and Madi communities living in Apaa, killing nine persons with poison arrows. Local leaders said businesspersons hired the attackers to scare the residents off disputed ancestral land in order to claim it for themselves. The government deployed the UPDF and UPF to Apaa to stop the violence, and the Prime Minister's Office donated food to the communities. Local government officials and traditional, civil society, and religious leaders criticized the government's response as inadequate and accused it of tacitly supporting the businesspersons.

On April 29, opposition politicians asserted the UPDF and UPF hired only members of ethnic groups from the southwest, where the president is from, for senior positions, discriminating against other ethnic groups (see section 7). The UPDF denied any discrimination in recruitment and stated that all of its officers possessed the requisite qualifications for their assignments. In a May newspaper editorial, however, a government spokesperson criticized the UPF for ethnic discrimination in recruitment, deployment, and promotions, which "threatens to erode the (UPF's) constitutional requirement of being national in character and composition."

Indigenous People

The local NGO Cross Cultural Foundation of Uganda (CCFU) reported that ethnic minorities did not participate in political leadership and decision-making processes affecting them. The CCFU reported that by year's end, the government had not yet resettled the Batwa and Benet communities it had displaced from ancestral

land claiming its actions were in the national interest, leaving them effectively landless and unable to maintain their livelihoods. In August the CCFU reported the 160-person Batwa community, which the government displaced to create a forest reserve in a western area in 1992, lived on two acres of land, in semipermanent buildings with inadequate sanitary facilities. The government displaced the Benet from their land in 1983 to create a forest reserve. The CCFU reported that although the High Court ruled in 2005 that the Benet could return to their land, authorities had not yet allowed them to do so.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Consensual same-sex sexual conduct is illegal according to a colonial era law that criminalized “carnal knowledge of any person against the order of nature” and provided for a penalty of up to life imprisonment. LGBTI persons faced discrimination, legal restrictions, societal harassment, violence, and intimidation.

The HRAFP reported numerous incidents of societal and government-led harassment and violence against LGBTI persons. Between February and April, the HRAFP reported 11 cases in which attackers physically assaulted persons because of suspicions they were LGBTI individuals. In one case a mob doused a suspected LGBTI person with gasoline and set him on fire before police rescued him. The HRAFP also reported 14 cases of police arresting persons on suspicion of being LGBTI. In five of these cases, police officers conducted forced anal examinations on the detainees. In August government pressure forced the LGBTI community to cancel its annual Pride Week. Officials threatened to arrest anyone who participated in Pride Week activities and coerced the Sheraton Hotel to cancel the opening gala the morning of the event.

Sexual Minorities Uganda's (SMUG) 2016 suit against the Uganda Registration Service Bureau (URSB) stalled because the judiciary transferred the judge handling the case but did not reassign it to another judge. SMUG had sued the URSB in 2016 for rejecting its application to reserve a name under which SMUG could officially register. The case continued at year's end.

HIV and AIDS Social Stigma

Although the law prohibits discrimination against persons with HIV/AIDS, discrimination was common and inhibited these persons from obtaining treatment and support. In cooperation with the government, international and local NGOs sponsored public awareness campaigns to eliminate the stigma of HIV/AIDS. HIV/AIDS counselors encouraged clients to be tested and share information about HIV/AIDS with their partners and family. Persons with HIV/AIDS formed support groups to promote awareness in their communities.

Police and the UPDF regularly refused to recruit persons who tested positive for HIV, claiming their bodies would be too weak for the rigorous training and subsequent deployment.

HIV/AIDS-infected persons faced discrimination in employment, and some reported having been fired because of their HIV status. According to local media, some employers forced their staff and job applicants to undergo HIV tests and dismissed those who tested positive. On July 26, local media reported that Chinese construction company China Communications Construction Company, a contractor on multiple government infrastructure projects, forced its staff to take an HIV test and then fired two persons who tested positive. The two staff sued the company for wrongful dismissal and the health center for violating their right to personal privacy. The case continued at year's end.

Other Societal Violence or Discrimination

Mob violence remained a problem. Mobs attacked and killed persons suspected of robbery, murder, rape, theft, ritual sacrifice, and witchcraft, among other crimes. Communities often resorted to mob violence due to a lack of confidence in the UPF and judiciary to deliver justice. Mobs often beat, lynched, burned, and otherwise brutalized their victims. On July 7, local media reported that a mob in the eastern part of the country stoned a 17-year-old boy to death for allegedly stealing a goat. The police had yet to arrest any suspects by year's end.

Section 7.

Worker Rights

A. FREEDOM OF ASSOCIATION AND THE RIGHT TO COLLECTIVE BARGAINING

The law allows workers, except members of the armed forces, to form and join independent unions, bargain collectively, and conduct legal strikes. The Ministry of Labor must register unions before they may engage in collective bargaining.

The law allows unions to conduct activities without interference, prohibits antiunion discrimination by employers, and provides for reinstatement of workers dismissed for union activity. The law also empowers the minister of gender, labor, and social development and labor officers to refer disputes to the Industrial Court if initial mediation and arbitration attempts fail.

The government did not effectively enforce applicable labor laws. Civil society organizations said the Ministry of Labor had insufficient funding to hire, train, and equip labor inspectors to enforce labor laws effectively. Employers who violate a worker's right to form and join a trade union or bargain collectively may face up

to four years' imprisonment and a fine of 1.9 million shillings (\$520). Penalties were generally insufficient to deter violations.

The government generally did not protect the constitutionally guaranteed rights to freedom of association and collective bargaining, and, at times, restricted some public servants' right to strike. On the third day of a nationwide strike by medical doctors, on November 9, the minister of health stated the government would punish doctors that refused to work and would terminate trainee doctors' internships if they participated in the strike. The minister added that the Uganda Medical Association's (UMA) call for the strike was illegal, as it did not have a collective bargaining agreement with the government, making its action illegal. On November 10, the UMA stated that the government's threats infringed on doctors' rights to freedom of association and collective bargaining.

Antiunion discrimination occurred, and labor activists accused several companies of deterring employees from joining unions by denying promotions, not renewing their work contracts, and refusing to recognize unions. The local NGO Platform for Labor Action (PLA) reported that some sugar and rice producers threatened to dismiss employees who joined unions and then cited unrelated performance issues to justify firing the employees. PLA reported that most workers were unaware of their right to join a trade union and did not contest employers' efforts to impinge upon this right. The National Organization of Trade Unions Uganda (NOTU) reported in 2016 that most employers did not provide their employees with written employment contracts, undermining employees' job security and access to union representation.

B. PROHIBITION OF FORCED OR COMPULSORY LABOR

The law prohibits forced or compulsory labor, including by children, but does not prohibit prison labor. The law states that prison labor would be considered forced

labor only if a worker is “hired out to, or placed at the disposal of, a private individual, company, or association.” According to local NGOs, the government did not effectively enforce the law, rendering penalties ineffective to deter violations. Those convicted of using forced labor may be fined up to 960,000 shillings (\$260), sentenced to two years’ imprisonment, or both, and be required to pay a fine of 80,000 shillings (\$22) “for each day the compulsory labor continued.”

PLA and local media reported that many citizens working overseas, particularly in the Arab Persian Gulf States, became victims of forced labor. PLA said traffickers and legitimate recruitment companies continued to send mainly female jobseekers to Gulf countries where many employers treated workers as indentured servants, including withholding pay and leave, and subjecting them to other harsh conditions.

Concluding that its 2016 ban on exporting domestic workers had failed to reduce the outflow of vulnerable women, the Ministry of Labor lifted the ban on April 1.

The UHRC reported that some prisons and police stations subjected detainees to forced labor. It reported that some prisons hired out prisoners as manual laborers to private farms without the detainees’ consent, and in some cases prison authorities forced sick inmates to work.

Also see the Department of State’s *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

C. PROHIBITION OF CHILD LABOR AND MINIMUM AGE FOR EMPLOYMENT

Child labor was common, especially in the informal sector. Children’s rights activists reported the employment of children as young as five years of age. The Uganda Bureau of Statistics (UBOS) reported in its 2016 Statistical Abstract that

approximately 33 percent of children ages six to 17 years old were engaged in child labor. Children primarily worked in cattle herding, loading trucks, gold mining, street vending, begging, scrap collecting, street hawking, stone quarrying, brick making, road construction and repair, car washing, fishing, domestic services, service work (restaurants, bars, shops), cross-border smuggling, and commercial farming (including the production of tea, coffee, sugarcane, vanilla, tobacco, rice, cotton, charcoal, and palm oil). They also were exploited in commercial sex.

PLA reported that many parents forced their children to work on family farms instead of attending school. Many children voluntarily left school for agricultural or domestic work to help their family meet expenses. Other children, particularly among the country's large orphan population, were compelled to work due to the absence of parents or because their parents were too sick to work.

Local media reported that some artisanal miners in central and eastern areas employed children in gold mining. While some children worked outside of school hours, others worked full-time and did not attend school. Local and international NGOs reported that children who worked as artisanal miners were exposed to mercury, and many were unaware of the medium- to long-term effects of the exposure. They felt compelled to continue working due to poverty and a lack of employment alternatives. Children also suffered injuries in poorly dug mine shafts that often collapsed.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

D. DISCRIMINATION WITH RESPECT TO EMPLOYMENT AND OCCUPATION

Although the law prohibits discrimination based on race, sex, religion, political opinion, national origin or citizenship, social origin, disability, age, language, and

HIV/communicable disease status, there were reports of discrimination based on some of these categories, including, disability, social origin, and HIV/communicable diseases (see section 6).

E. ACCEPTABLE CONDITIONS OF WORK

The government has not increased the legal minimum wage of 6,000 shillings (\$1.65) per month since it established a minimum wage in 1984. This wage was far less than the government's official poverty income level (\$0.90 per day) and well below the market rate for unskilled labor. The government's Minimum Wage Advisory Board, established in 2015 to assess the feasibility of a minimum wage, had yet to release the findings it presented to the president in 2016. NOTU officials reported in 2016 that due to the country's high unemployment rate, which the 2014 National Census report estimated at 9.4 percent, and underemployment rate, which the UBOS reported at 12.9 percent in 2015, employers had disproportionate power to determine employees' salaries in the formal sector.

The maximum legal workweek is 48 hours, and the maximum workday is 10 hours. The law provides that the workweek may be extended to 56 hours per week, including overtime, with the employee's consent. An employee may work more than 10 hours in a single day if the average number of hours over a period of three weeks does not exceed 10 hours per day, or 56 hours per week. For employees who work beyond 48 hours in a single week, the law requires employers to pay a minimum of 1.5 times the employee's normal hourly rate for the overtime hours, and twice the employee's normal hourly rate for work on public holidays. The law grants employees a 30-minute break during every eight-hour work shift. For every four months of continuous employment, an employee is entitled to seven days of paid annual leave.

The law establishes occupational safety and health standards and regulations for all workers, enforced by the Ministry of Labor's Department of Occupational Safety and Health. The law authorizes labor inspectors to access and examine any workplace, issue fines, and mediate some labor disputes. While the law allows workers to remove themselves from situations that endanger their health or safety without jeopardizing their employment, legal protection for such workers was ineffective.

Authorities did not effectively enforce labor laws, due to insufficient resources for monitoring. NOTU reported in 2016 that the government's enforcement of applicable laws was ineffective due to understaffing, lack of funding, insufficient training, and weak interagency coordination mechanisms. Local NGOs said the Ministry of Labor had insufficient funds to employ and equip the number of labor officers needed to monitor labor conditions nationwide. In 2016 only 49 of the country's 117 districts had a labor officer, and their training, funding, and logistical support were inadequate. The ministry reported in 2016 that it conducted more than 100 on-site inspections, 120 desk reviews, and 50 routine inspections during the year. According to PLA, many labor officers lacked the funds and resources to inspect work places where child labor and other violations were prevalent. PLA reported that civil society organizations often provided labor officers with transportation to conduct labor inspections.

In some of the districts without labor officers, community development officers, local officials responsible for supervising government-funded development programs, assumed this responsibility. While such individuals were responsible for conducting labor inspections, they often had insufficient training to fulfill this mandate effectively. NOTU officials said in 2016 the government favored investors over workers, rendering it difficult for labor inspectors to enforce the law.

According to PLA, most workers were unaware of their employers' responsibility to ensure a safe working environment and many did not challenge unsafe working conditions, as they feared losing their job. The Ministry of Labor and civil society reported in 2016 that due to the high unemployment rate and ubiquitous informal economy, workers felt compelled to remain in work situations that failed to comply with labor laws and endangered their health, fearing reprisals if they requested improved conditions.

Labor officials reported that labor laws did not protect workers in the informal economy, including many domestic and agricultural workers. In 2016 the Uganda Retirement Benefits Regulatory Authority licensed a retirement benefits program for the informal sector. The program covers traders and individuals engaged in various forms of informal work. Figures released by UBOS in 2014 estimated the informal sector employed up to 80 percent of the labor force. URBRA reported most of the country's 13 million eligible workers were in the informal and agricultural sectors. The formal pension systems covered less than 10 percent of the working population.

Violations of standard wages, overtime pay, or safety and health standards were common. Deaths occurred due to unsafe working environments. Local media reported that three staff at two food-processing factories died from injuries sustained at work between May and June.